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AMAZON.COM SERVICES, LLC and
AMAZON LOGISTICS, INC.

UNITED STATES DISTRICT COURT

CENTRAL DISTRICT OF CALIFORNIA

MIGUEL LERMA, JR., individually and on behalf of all others similarly situated,

Plaintiff,

vs.

AMAZON.COM SERVICES, LLC, AMAZON LOGISTICS, INC., ACCURATE BACKGROUND, and DOES 1-5,

Defendants.

Case No. 8:22-CV-01727-FWS-JDE

REQUEST FOR JUDICIAL NOTICE IN SUPPORT OF DEFENDANTS AMAZON.COM SERVICES, LLC AND AMAZON LOGISTICS, INC.'S MOTION TO DISMISS PLAINTIFF'S FIRST AND FIFTH CLAIMS IN THE FIRST AMENDED COMPLAINT

Date: February 16, 2023
Time: 10:00 a.m.
Judge: Hon. Fred W. Slaughter
Ctrm: 10D

TO THE UNITED STATES DISTRICT COURT FOR THE CENTRAL DISTRICT OF CALIFORNIA, AND TO ALL PARTIES AND THEIR COUNSEL OF RECORD:

PLEASE TAKE NOTICE that, in accordance with Federal Rule of Evidence 201, Defendants Amazon.com Services, LLC and Amazon Logistics, Inc. (together, "Amazon") will, and hereby do, request that the Court take judicial notice of the following documents in connection with Amazon's Motion to Dismiss Plaintiff's First and Fifth Claims in the First Amended Complaint:

- **Exhibit 1** – A true and correct redacted copy of the background check report concerning Plaintiff prepared by Defendant Accurate Background and referenced by Plaintiff in the First Amended Complaint.
- **Exhibit 2** – A true and correct copy of the pre-adverse action notice sent to Plaintiff on March 23, 2022, and referenced by Plaintiff in the First Amended Complaint.
- **Exhibit 3** – A true and correct copy of the adverse action notice sent to Plaintiff on April 6, 2022, and referenced by Plaintiff in the First Amended Complaint.
- **Exhibit 4** – A true and correct copy of the Case Summary for Criminal Case No. 11WF0759, Defendant Miguel Lerma, in the Superior Court of California, County of Orange.
- **Exhibit 5** – A true and correct copy of the "Offender Profile" for Plaintiff contained on California Megan's Law Website, *available at* https://www.meganslaw.ca.gov/Default.aspx.

When ruling upon a motion to dismiss, a court may "consider unattached evidence on which the complaint 'necessarily relies' if: (1) the complaint refers to the document; (2) the document is central to the plaintiff's claim; and (3) no party questions the authenticity of the document." *U.S. v. Corinthian Colleges*, 655 F.3d

984, 999 (9th Cir. 2011); *see also Knievel v. ESPN*, 393 F.3d 1068, 1076 (9th Cir. 2005) ("Our approach is permissible under the 'incorporation by reference' doctrine, which permits us to take into account documents 'whose contents are alleged in a complaint and whose authenticity no party questions, but which are not physically attached to the [plaintiff's] pleading" (citations omitted)). "The court may treat such a document as 'part of the complaint, and thus may assume that its contents are true for purposes of a motion to dismiss under Rule 12(b)(6)." *Marder v. Lopez*, 450 F.3d 445, 448 (9th Cir. 2006) (quoting *United States v. Ritchie*, 342 F.3d 903, 908 (9th Cir. 2003)). Further, the court may use the incorporation by reference doctrine to consider extrinsic evidence even if a complaint deliberately fails to mention a critical document upon which it relies. *Parrino v. FHP, Inc.*, 146 F.3d 699, 706, *superseded by statute on other grounds as recognized in Abrego Abrego v. Dow Chemical Co.*, 443 F.3d 676, 681 (9th Cir. 2006). This "[p]revents plaintiffs from surviving a Rule 12(b)(6) motion by deliberately omitting references to documents upon which their claims are based." *Id.*

Here, Plaintiff references and relies upon the contents of the background check report, the pre-adverse action notice, and the adverse action notice to advance his purported theory that Amazon improperly obtained and used information about Plaintiff's felony rape convictions from the Megan's Law sex offender registry. *See, e.g.*, FAC ¶¶ 25, 27, 59. These documents are essential to Plaintiff's claims, yet Plaintiff did not attach them to his First Amended Complaint. Accordingly, the Court may take judicial notice of these documents and consider them in connection with this Motion.

In addition, Federal Rule of Evidence 201 ("Rule 201") allows a court to take judicial notice of facts that are "not subject to reasonable dispute" because they are either (1) "generally known within the trial court's territorial jurisdiction" or (2) "can be accurately and readily determined from sources whose accuracy cannot

reasonably be questioned." Fed. R. Evid. 201(b).

"Court orders and filings are the type of documents that are properly noticed under the rule." *Neilson v. Union Bank of Cal.*, 290 F. Supp. 2d 1101, 1112-14 (C.D. Cal. 2003) (granting judicial notice of court orders and civil minutes, including the "existence and legal effect of the documents"); *see also MGIC Indem. Corp. v. Weisman*, 803 F.2d 500, 504 (9th Cir. 1986) (holding that courts may take judicial notice of matters of public record outside the pleadings); *United States v. Wilson*, 631 F.2d 118, 119 (9th Cir. 1980) ("In particular, a court may take judicial notice of its own records in other cases, as well as the records of an inferior court in other cases."); *Helm v. Alderwoods Group, Inc.*, 696 F. Supp. 2d 1057, n.3 (N.D. Cal. 2009) (taking judicial notice of complaint filed in another lawsuit); *E. & J. Gallo Winery v. Encana Energy Servs., Inc.*, No. CVF03-5412AWILJO, 2005 WL 2435900, at *6 (E.D. Cal. Sept. 30, 2005) ("A district court may take judicial notice pursuant to Rule 201 of the Federal Rules of Evidence . . . of orders or decisions or proceedings of any federal or state court."); *Mir v. Little Co. of Mary Hosp.*, 844 F.2d 646, 649 (9th Cir. 1988) (judicial notice taken of complaints in related actions); *Bias v. Moynihan*, 508 F.3d 1212, 1225 (9th Cir. 2007) (district court "may take notice of proceedings in other courts, both within and without the federal judicial system, if those proceedings have a direct relation to matters at issue").

Courts also routinely take judicial notice of information posted on government websites. *See, e.g.*, *United States Small Bus. Admin. v. Bensal*, 853 F.3d 992, 1003 n. 3 (9th Cir. 2017) (taking judicial notice of loan requirements reported on U.S. Small Business Administration's website because "it was made publicly available by government entities"); *Daniels-Hall v. Nat'l Educ. Ass'n*, 629 F.3d 992, 998-99 (9th Cir. 2010) (taking judicial notice of vendor lists on school district websites because "it was made publicly available by government entities (the school districts), and neither party disputes the authenticity of the web sites or

the accuracy of the information displayed therein"); *Griffin v. Green Tree Servicing, LLC*, 166 F. Supp. 3d 1030 (C.D. Cal. 2015) (taking judicial notice of printout from the Federal Deposit Insurance Corporation's website because "it is information obtained from a government website").

Pursuant to the above-noted authority, Amazon requests that the Court take judicial notice of the above-referenced documents.

Dated: December 15, 2022

MORGAN, LEWIS & BOCKIUS LLP

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